Taco Tell Terms of Service (TOS)

Effective Date: [Insert Date]
Version: 1.0

1. Introduction

This policy is governed by the laws, rules, and regulations of Utah, United States and the most recent Taco Bell Employee Handbook. By accessing and using the "Taco Tell" application to manage employee communications, schedule updates, or SMS notifications, you ("User," "Employee," or "Manager") agree to be bound by these Terms of Service. These terms govern your use of the service provided by the Vendor ("Taco Tell").

2. Use of the Application

The Taco Tell application is designed and intended solely for:

- Sending SMS schedule updates, notifications, and alerts to authorized employees within a specific restaurant location.
- Managing employee contact information for internal business operations.

Prohibited Uses:

1. **Harassment or Bullying:** The application shall never be used to bully, harass, manipulate, retaliate, or adversely affect employees or the employer in any way. Such use will result in immediate termination of service and potential reporting to management or law enforcement.
2. **Unauthorized Access:** Managers must only access the application using credentials provided by their employer/restaurant. Unauthorized access is prohibited.

3. Privacy and Data Handling

1. The application shall never be used to gather private, confidential, or non-public information about the company, its employees, or the employer outside of the scope of schedule management and verification.
2. Users agree not to use the application for any purpose other than authorized business communications regarding work schedules and notifications.

4. Security and Unauthorized Changes

1. **Code Integrity:** The User or Employees shall not make any unauthorized changes to the application design, codebase, or database configuration without the explicit written or verbal consent of the Vendor.
2. **Breach Reporting:** Any unauthorized data breaches, code modifications, or suspicious activities detected within the application must be reported immediately to the Vendor at **(801) 953-5337** or via email at **beegyoshi9817@gmail.com**.

5. Bug Fixes and Feature Requests

1. Users are encouraged to report bugs or suggest features. All bugfixes and feature requests should be submitted to the Vendor at **beegyoshi9817@gmail.com**.
2. Subject Line Requirement: Email must be subject with the exact text: **"Taco Tell User Story"**.
3. *Note:* Response times for bugfixes or feature requests are not guaranteed and will depend on current development capacity.

6. Liability Notice

Taco Tell and the vendor are not responsible for any damages that occur due to SMS delivery failure, delays, or user error.

7. Compliance with Internal Policies

In addition to all rules listed in these Terms, users acknowledge that all regulations and conduct standards outlined in the most recent **Restaurant Employee Handbook** shall apply. Violation of handbook policies may result in disciplinary action by management independent of this application's usage.

8. Administration and Succession

The Taco Tell application is designed to support the chain of command for schedule communications. In the event that a General Manager leaves the company while this policy remains active, the following succession protocol applies:

1. The policy automatically carries over to the new General Manager.
2. If no General Manager can succeed, authority transfers to the Assistant General Manager.
3. If no Assistant General Manager is available, authority transfers to the most experienced Shift Lead.
4. Subsequent shifts in command may follow to other Shift Leads, Team Trainers, or employees as appropriate for operational continuity.

9. Licensing and Payment Terms

1. **Service Model:** While Taco Tell was originally built as a passion project for the Taco Bell Restaurant identifying as Store #033154 free of charge, other employees, the employer, or a third party may offer to purchase the business from the vendor.
2. **Business Purchase:** The minimum requested price for the service is $675, however this price is negotiable. The transaction occurs only once both parties come to an agreement.
3. **Purchasing Service Instances:** Other employees may purchase instances of the service for use in their restaurants for $25 per month per instance. This price is NOT negotiable.
4. **Ownership Transfer:** Once ownership is transferred following the purchase transaction (regardless of price), the Vendor may amend these Terms and Privacy Policy as the new owner

deems appropriate, provided such amendments are communicated to all users prior to implementation.

10. Intellectual Property

The application code, design, branding, and any proprietary algorithms developed by the Vendor remain the sole intellectual property of the Vendor. This license grants you a limited right to use the application for schedule communications under the terms herein.

11. Termination

Either party may terminate this agreement at any time by providing written notice to the Vendor. Upon termination, access to the application will be revoked, and users must return or delete any confidential data processed outside of standard operational needs.

Taco Tell Privacy Policy

Effective Date: [Insert Date]
Version: 1.0

1. Introduction

Taco Tell is committed to protecting your personal information. This Privacy Policy explains how we collect, use, and safeguard the data associated with your account and communication within our application.

2. Data Collected

We collect only the minimum amount of data necessary to provide schedule updates and verify user identities:

1. **Phone Numbers:** Cell phone numbers stored in our local database for SMS delivery.
2. **Names and IDs:** First names, last names, and Employee ID numbers used solely for verification purposes and to identify the owner of each stored phone number.

3. Purpose of Collection

Data is collected exclusively for:

- Sending scheduled SMS updates regarding shifts, breaks, or changes.
- Verifying that schedule updates are being sent to authorized employees within a restaurant location.
- Ensuring data integrity and preventing unauthorized access attempts.

4. Third-Party Processing (SMS Provider)

To deliver SMS messages, we use an external telecommunications service provider (Twilio). Your phone number may be transmitted to this provider solely for the purpose of delivering your message. We do not store your number in any third-party database beyond the transmission event. You agree that third-party carriers may see your number during standard SMS delivery processes required by telecom regulations.

5. Sharing and Disclosure

1. **No Marketing:** The phone numbers of all employees stored in the database will never be used for marketing purposes, advertising, or any purpose other than what is listed in the app description.
2. **No Sale or Posting:** Employee phone numbers will never be sold, traded, posted online, shared with competitors, or disclosed to any third party for any reason.
3. **Employer Number Usage:** The Employer's phone number (if stored) will only be used to provide employees with a way to contact them regarding schedule change information and internal communication. It will never be used for marketing, sold, or posted online.
4. **Vendor Contact Information:** The Vendor's phone number and contact information will never be used within the app itself for any reason.
    - *Exception:* In the event that ownership of this policy and service is transferred to a third party following the purchase transaction described in the TOS, the new owner may use the Vendor's contact information solely for administrative purposes during the transition.

6. Security Measures

While no system is completely secure, we employ standard industry practices to protect your data:

- Data is stored securely within the application environment designated by the owner.
- Access controls are in place to ensure only authorized users can access sensitive contact information and schedule configurations.

7. Data Retention

Phone numbers and associated data will be retained for as long as necessary to support active schedules and notifications. Upon account deactivation or termination of service, data is removed from the system in accordance with our security protocols.

8. Your Rights

You have the right to update your phone number if necessary through authorized channels. If you believe your information has been mishandled or if there are concerns regarding privacy, please contact the Vendor directly at **beepyoshi9817@gmail.com**.
